

26LBCV00114 26LBCV00114

County: los-angeles

Division: Civil Law and Motion

Department: S25

Hearing date: 2026-07-14

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Case Number: 26LBCV00114 Hearing Date: July 14, 2026 Dept: S25

Motion: Defendants Long Beach Memorial Medical Center; Memorialcare Long Beach Medical Center, dba Long Beach Memorial Medical Center; Memorial Health Services, sued and served as Memorialcare's Motion to Strike Allegations of Pre-Death Pain and Suffering and Punitive and Exemplary Damages in Complaint

Moving Parties: Defendants Long Beach Memorial Medical Center; Memorialcare Long Beach Medical Center, dba Long Beach Memorial Medical Center; Memorial Health Services, sued and served as Memorialcare Starbucks Corporation ("Defendants")

Responding Party: Plaintiff Steven Curtis, individually and as successor in interest to Dolores Aracely Perez, deceased ("Plaintiff")

Procedural Background

On January 16, 2026, Plaintiff filed a complaint against Defendants Long Beach Memorial Medical Center; Memorial Care Long Beach Medical Center; Memorial Care and Does 1 through 100, alleging the following claims:

Wrongful Death based on Medical Malpractice (CCP §377.60); and

Medical Malpractice through a Survival Action (CCP §377.20).

On May 1, 2026, Defendants filed the instant motion to strike. On June 16, 2026, the Court continued the instant motion to July 14, 2026. (June 16, 2026 Notice re: Continuance of Hearing and Order.)

As of July 8, 2026, no opposition has been received.

Meet and Confer

The requirements are satisfied. (Firth Decl., ¶¶ 2-4, Exs. A-B; Code Civ. Proc., § 435.5, subd. (a).)

Discussion

Pre-Death Pain and Suffering Allegation

Code of Civil Procedure section 377.34 states in relevant part:

“(a) In an action or proceeding by a decedent's personal representative or successor in interest on the decedent's cause of action, the damages recoverable are limited to the loss or damage that the decedent sustained or incurred before death, including any penalties or punitive or exemplary damages that the decedent would have been entitled to recover had the decedent lived, and do not include damages for pain, suffering, or disfigurement.

(b) Notwithstanding subdivision (a), in an action or proceeding by a decedent's personal representative or successor in interest on the decedent's cause of action, the damages recoverable may include damages for pain, suffering, or disfigurement if the action or proceeding was granted a preference pursuant to Section 36 before January 1, 2022, or was filed on or after January 1, 2022, and before January 1, 2026.”

The complaint in this action was filed on January 16, 2026. Thus, pre-death pain and suffering and such are stricken.

The instant motion is GRANTED without leave to amend as to this ground. Complaint page 6, lines 12-16: “2. DOLORES ARACELY PEREZ' pre-death pain and suffering damages as available under Code of Civil Procedure section 377.34(b) up to the limits outlined in Civil Code section 3333.2 for the second cause of action for negligence. This is separate, apart, and in addition to the general damages sought by STEVE CURTIS in the first cause of action. (Ng v. Superior Court (2025) 108 Cal.App.5th 382, 388.)” is ordered stricken.

Punitive Damages

The Court finds that insufficient allegations have been pled to warrant punitive damages.

Tentative Ruling

The Court GRANTS the instant motion without leave to amend as to pre-death pain and suffering and with 10 days leave to amend as to punitive damages.